

Resolution to Make Provisional Changes to Board Policies and Administrative Guidelines and Forms to Comply with HB33

WHEREAS, on June 30, 2023, the 135th Ohio General Assembly passed the state's biennial Operating Budget for FY 24-25 ("Amended Substitute House Bill 33" or "H.B. 33"), and Governor DeWine signed the legislation into law on July 3, 2023; and

WHEREAS, Amended Substitute House Bill 33 makes significant structural changes to the Ohio Department of Education, including renaming the Department of Education as the Department of Education and Workforce ("DEW"), creating the position of a director of education and workforce who will be appointed by the Governor with the advice and consent of the Senate, establishing within the DEW the Division of Career-Technical Education and the Division of Primary and Secondary Education, each of which will be led by a deputy director appointed by the director of education with the advice and consent of the Senate, creating the "Department of Children and Youth," creating the position of a director of children and youth, and transferring most of the powers and duties of the State Board of Education and the Superintendent of Public Instruction to the DEW, the Director of Education and Workforce, the Department of Children and Youth, and/or the Director of Children and Youth; and

WHEREAS, most of the State Board of Education and/or Superintendent of Public Instruction's powers prior to the effective date of H.B.33 will now fall under the auspices and/or jurisdiction of the DEW, the Director of Education and Workforce, the Department of Children and Youth, and/or the Director of Children and Youth, the State Board of Education retains the following duties: (1) adopt requirements for educator licensure; (2) process and issue educator licenses; (3) investigate and resolve educator misconduct complaints; (4) evaluate background checks, evaluate eligibility for licensure and participate in the retained applicant fingerprint database program; (5) determine school district territory transfer disputes; and (6) administer the teacher and school counselor evaluation systems; and

WHEREAS, during the period of transition and until such time as respective roles are clearly delineated, the Board of Education desires to recognize and give full effect to the structural changes made by H.B. 33 and align its practices accordingly;

NOW, THEREFORE, BE IT RESOLVED, by the Board of Education that any and all references to the "Department of Education," "Ohio Department of Education," "Department," or "ODE" contained in the Board's existing policies and corresponding administrative guidelines and forms, shall, after the effective date of HB 33 (i.e., on or about October 2, 2023), mean the "Department of Education and Workforce" ("DEW") or the "Department of Children and Youth" for all purposes set forth and described in HB 33.

BE IT FURTHER RESOLVED, that to the extent that existing Board policies and corresponding administrative guidelines and forms reference the "State Superintendent of Public Instruction" and/or the "State Board of Education," such references, after the effective date of HB 33, shall be mean the "Department of Education and Workforce" ("DEW"), the "Director of Education and Workforce," the "Department of Children and Youth" and/or the "Director of Children and Youth" as applicable and appropriate and as set forth and described in HB 33.

BE IT FURTHER RESOLVED that, until such time as the Board's existing policies and corresponding administrative guidelines and forms are updated to reflect the changes set forth above, the Superintendent shall act and direct other school staff to act and carry out their responsibilities in a manner consistent with HB 33 and the above-identified provisional changes to Board policies and corresponding administrative guidelines and forms.

Motion _____ 2nd _____

Aye _____ Nay _____

Date: _____

Board Resolution Number: _____

Craig Yaniglos, Treasurer/CFO